3 Strikes & Racial Disparities in Incarceration

Javaris Bradford, McNair Scholar | Samuel Myers, Ph. D. | Man Xu, Graduate Student | Humphrey School of Public Affairs

Abstract

This research looks at whether there is a connection between the states with “3 Strike and You’re Out” legislation and racial disparities in incarceration. The data on incarceration rates was gathered from various government sites by state, year, and racial population. A cross-sectional analysis was used to interpret the results, which showed states with and without 3 Strikes legislation had similar incarceration rates. There was also correlational analysis of incarceration before and after 3 Strikes and You’re Out was introduced into law, which also illustrated similar incarceration rates. The key findings are statistically significant differences in the Black to White incarceration rates between southern and northern states -- before and after 3-strikes, and states with and without 3-strikes legislation. Examining the US penal system and the legislation put forth helps to further understand racial disparities.

Hypothesis

- Does 3 Strikes & You’re Out” increase racial disparities in incarceration?
- Do states with low Black populations have greater racial disparities in incarceration than states with high Black populations?

Variables / Research

Independent Variables

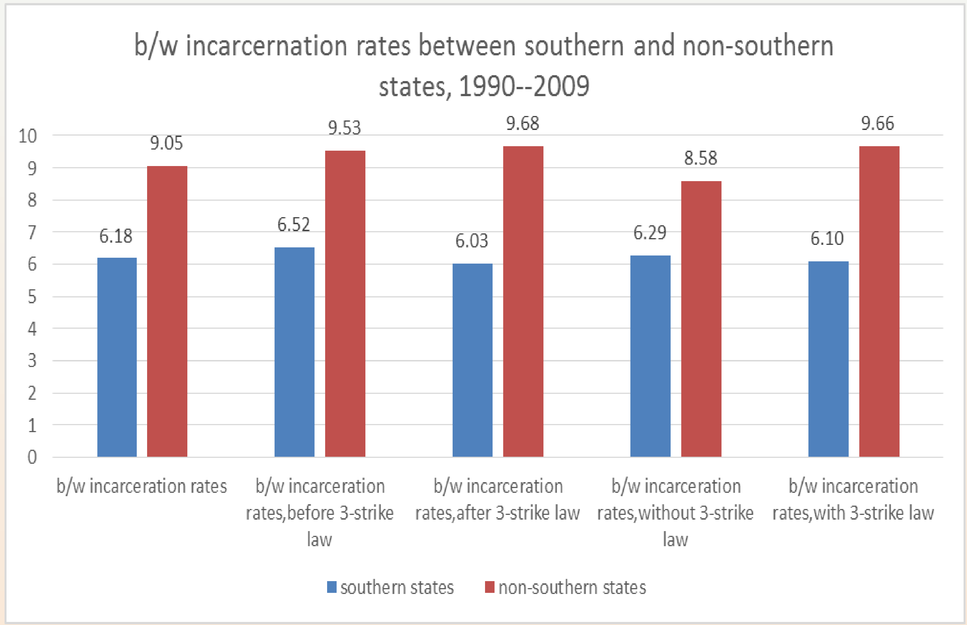
- States populations
- Race
- Year
- States with and without 3 strikes

Dependent Variable

- Incarceration rates



Results



- States with low Black populations have greater racial disparities in incarceration
- Non southern states have greater racial disparities in incarceration
- Southern states have lesser racial disparities in incarceration

Data / Observations

Table: Means difference tests (T-tests) on black/white ratio of incarceration rate

Without 3-strike (mean)	With 3-strike (mean)	Means Difference	T-score
7.960165	8.316697	-0.356532	-1.3766
Before 3-strike (mean)	**After 3-strike (mean)**	**Means Difference**	**T-score**
8.355941	8.310044	0.045897	0.0951
Below 25% Black Population (mean)	**Over 25% Black Population (mean)**	**Means Difference**	**T-score**
8.490461	5.50767	2.982791	15.1976***
Other States (mean)	**Southern States (mean)**	**Means Difference**	**T-score**
9.053806	6.183608	2.870198	14.3622***
Below 25% Black,Population,without 3-atrike (mean)	**Over 25% Black Population, without 3-strike (mean)**	**Means Difference**	**T-score**
8.236546	4.650501	3.586045	15.4792***
Other States, without 3-strike (mean)	**outhern States, without 3-strik (mean)**	**Means Difference**	**T-score**
15.30183	17.45914	-2.15731	-3.1797***

Materials

Materials	Quantity
Data set	1990-2009
Data Source	ICPSR National Prisoner Statistics
Population data	US Census
Black/White Incr Ratio	1990-2009
Black/White State Populations	1990-2009

Conclusion

- Direct causation isn’t from the law to the dipartites, rather the disparities to the law
- Places with low Black populations are more likely to pass 3 Strikes legislation, than states with high Black populations
- 3 Strikes legislation isn’t hurting, nor helping racial disparities in incarceration

Works Cited

- Census, United States. *Race.* August 2, 2016. https://www.census.gov/topics/population/race.html (accessed May 19th , 2016).
- Stemen, Don. *Impact of State Sentencing Policies on Incarceration Rates in the United States, 1975-2002.* March 2011. https://www.icpsr.umich.edu/icpsrweb/ICPSR/studies/4456?q=Incarceration+rates+by+race+by+state+by+year&searchSource=icpsr-landing (accessed August 2nd, 2016).